

Dowry Prohibition (Bihar Amendment) Act, 1975

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State of Bihar - Act

Dowry Prohibition (Bihar Amendment) Act, 1975

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Dowry Prohibition (Bihar Amendment) Act, 1975

Act 4 of 1976

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Dowry Prohibition (Bihar Amendment) Act, 1975

Bihar Act

4 of 1976

S.O. 178, dated 28 January, 1977, published in Bihar Gazette, Part II, dated February 2, 1977, at page 124. - In exercise of the powers conferred by Section 4 of the Dowry Prohibition Act, 1961 (Act XXVII of 1961) as substituted by Section 3 of the Dowry Prohibition (Bihar Amendment) Act, 1975 (Bihar Act IV of 1976), the Governor of Bihar is pleased to order that the District Magistrates of all the districts shall exercise the powers to accord previous sanction for prosecution in respect of offences under this section within the local limits of their respective jurisdiction.

Section 3

1.

For Section 3, the following section shall be substituted, namely:-

"3. Penalty for giving or taking dowry. - If any person after the commencement of this Act, gives or takes or abets the giving or taking of dowry, he shall be punishable with imprisonment which may extend to years and with fine which may extend to five thousand rupees." (Vide Bihar Act

4 of 1976

, Section 2 (w.e.f. 20.1.1976).

Section 4

2.

For Section 4, the following section shall be substituted, namely:-

"4. Penalty for demanding dowry. - If any person, after the commencement of this Act, demands directly or indirectly from the parents or guardian of a bride or bridegroom, as the case may be, any dowry, he shall be punishable with imprisonment which may extend to six months and with fine which may extend to five thousand rupees:

Provided that no Court shall take cognizance of any offence under this section except with the previous sanction of the State Government or of such officers as the State Government may, by general or special order, specify in this behalf."

(Vide Bihar Act

4 of 1976

, Section 3 (w.e.f. 20.1.1967).

Section 7

3.

For Section 7, the following section shall be substituted, namely:-

"7. Trial of offences. - Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (Act II of 1974) no Court inferior to that of a Metropolitan Magistrate or a Judicial Magistrate of the first class shall try any offence under this Act." (Vide Bihar Act

4 of 1976

, Section 4 (w.e.f. 20.11.1976).

Section 8

4.

For Section 8, the following section shall be substituted, namely:-

"8. Offences to be cognizable, non-bailable and non-compoundable. - Every offence under this Act shall be cognizable non-bailable and non-compoundable." (Vide Bihar Act

4 of 1976

, Section 5 (w.e.f. 20.1.1976).

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